

Delhi High Court

K.K. Saxena vs International Commission On ... on 25 April, 2011

Author: Dipak Misra, Chief Justice

* IN THE HIGH COURT OF DELHI AT NEW DELHI

% Judgment Reserved on: February 7, 2011
Judgment Delivered on: April 25, 2011

+ LPA No. 554 Of 2006

K.K. Saxena Appellant

Through: Mr. Piyush Sharma, Advocate.

Versus

International Commission on
Irrigation & Drainage & Ors. Respondents

Through: Mr. Bharat Sangal, Ms. Vernika Tomar and Ms. Alka Singh, Advocate.

CORAM:

HON'BLE THE CHIEF JUSTICE HON'BLE MR. JUSTICE SANJIV KHANNA

1. Whether reporters of the local papers be allowed to see the judgment? YES

2. To be referred to the Reporter or not? YES 3 Whether the judgment should be reported in the Digest? YES DIPAK MISRA, CJ In this intra-Court appeal which is preferred against the order dated 17.1.2006 passed by the learned Single Judge in CWP No.1846/2006, the seminal issue whether the respondent - International Commission of Irrigation and Drainage (hereinafter referred to as ICID) is a State under LPA 554/2006 page 1 of 32 Article 12 of the Constitution of India and further if the said organization is not treated as a State and other authority its actions will be amenable for judicial review under Article 226 of the Constitution of India on the foundation that it performs public duty, emerges for consideration.

2. The facts which are requisite to be stated are that the appellant was appointed on 20.1.1997 as Secretary, ICID. On 8.1.1999, a letter was issued by the Secretary General relating to the role and responsibility in respect of the post. Thereafter, on 11.8.1999, the Secretary General sent a fax message from Stockholm directing him to look after day to day work during his absence for the conference at Granada and shortly after, on 15.8.1999, a communication was issued by the Secretary General terminating the services of the appellant. On 19.8.1999, the appellant claimed three months salary as per the rules as also payment for provident fund. Later on, he requested for revocation of the order of termination and when no response was shown, a reminder was sent on 2.9.1999 and on 16.10.1999, a representation was made to the Secretary General to review the termination order and reinstate him but the same fell on deaf ears.

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3. Being dissatisfied with the said action, the appellant invoked the writ jurisdiction of this Court contending, inter alia, that the action of the ICID is arbitrary and unreasonable being violative of Article 14 of the Constitution of India. It was urged that ICID is a State and other authority within the meaning of the expression under Article 12 of the Constitution of India and further it is involved in performing public duty. It was averred that the ICID is under the Government control and the criteria and test set out for determining whether a corporation or society is a State or other authority under Article 12 of the Constitution of India is satisfied inasmuch as the ICID was established by the Central Government by giving a grant of Rs.15,000 in 1950; that there are instances when the Government officers had come on deputation to the society; that the Central Government has been paying the subscription for administrative and other functions of ICID and, hence, the financial control rests with the Government; that the staffing pattern of the ICID is in accord with the line of the Government; that the ICID has monopoly status since it is the only society established by the Government of India to bring together information on irrigation from India and outside; that the Government provides to it irrigation related information generated in the country and LPA 554/2006 page 3 of 32 uses public cost and also uses information pulled by it for Government irrigation works; and that the President or Vice-President in-charge of the central office of the society is a Government officer and the officers of the Central Government are ex-officio Secretary General though they do not draw salary from ICID. It was also contended that the term other authority used in Article 226 of the Constitution is of much wider connotation and even if it is held that the ICID is not a State within the purview of Article 12 of the Constitution still then its actions would be amenable for judicial review under Article 226 of the Constitution of India as it discharges public function or public duty of great magnitude.

4. We may note with profit that apart from making these averments, it was also pleaded in the writ petition how the order of termination was absolutely illegal as the appellant could not have been removed from service without holding an enquiry and further, the said order of termination was violative of the Rules, namely, ICID Employees Conduct Rules, 1967 controlling the service conditions of the appellant. It was also put forth that there was no reason to dispense with the enquiry as stipulated under Rule 33(b) of the Rules.

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5. Resisting the aforesaid stand and stance put forth in the writ petition, it was contended by the respondent that the ICID is neither a State under Article 12 of the Constitution of India nor is it amenable to writ jurisdiction under Article 226 of the Constitution. It was put forth that the said society does not fulfill the requisite tests which would bring it within the purview of Article 12 of the Constitution inasmuch as the management of the affairs of the society is vested in an International Executive Council (IEC) consisting of office bearers and one duly appointed representative from each National Committee; that the office bearers of the ICID consist of one President, 9 Vice-Presidents and one Secretary General and all the office bearers except the Secretary General, who is the full time office bearer appointed by IEC, are elected by majority of votes of the members of the said Council; that the representatives of the World Bank, FAO, United Nations Educational, Scientific and Cultural Organizations (UNESCO) and International Irrigation Management Institute (IIMI), amongst others, have a place in the International Executive Council of the ICID as

permanent observers; that the representatives of the World Bank, FAO, UNESCO and other related UN agencies also participate in the work and various activities of the ICID; that the ICID comprises about 30 staff LPA 554/2006 page 5 of 32 members in all and works under the general supervision of the Council and under the immediate direction of the President; that clause 7.3 of the Constitution of the ICID empowers the Secretary General to frame such rules and procedure as he considers necessary for governing the staff and for the proper functioning of the central office in consultation with the staff committee; that the following of a staffing pattern by ICID in the line of the Central Government does not bring the society under the control of the State; that the ICID is an independently funded organization whose functions are financed by subscriptions from several countries; and that deputation of some officers from the Government at certain times does not give it the character of a State.

6. It was also contended by the respondent ICID that it does not perform any public duty which would make it amenable to writ jurisdiction under Article 226 of the Constitution since its objects stimulate and promote the development and the application of the arts, sciences and techniques of engineering, agriculture, economics, ecology and social sciences in managing water and land resources for irrigation, drainage, flood control and river training and for research in a more comprehensive manner adopting upto date techniques and its activities cannot be stated to LPA 554/2006 page 6 of 32 be intrinsically public in nature or closely related to those performable by the State in its sovereign capacity.

7. It is also apt to note here that the respondent justified the order of termination on the ground that the functioning of the appellant was not satisfactory and, therefore, his services were dispensed with as per the rules and, hence, no enquiry was necessary. That apart, various other grounds were urged to justify the order of termination.

8. The learned Single Judge, analyzing the facts and taking note of the authorities cited at the Bar, came to hold that the ICID is not a State or other authority under Article 12 of the Constitution of India and its functions are not such which will bring the same within the ambit of public duty as a consequence of which it would be amenable under Article 226 of the Constitution of India. Being of this view, he declined to address himself with regard to the justifiability and sustainability of the order of termination and observed that it would be open to the appellant to take recourse to appropriate remedy as advised in law.

9. First, we shall advert to the issue whether the respondent-society is a State under Article 12 of the Constitution of India. Before delineating the LPA 554/2006 page 7 of 32 facts brought on record for the purpose of establishing that it is a State within the purview of Article 12 of the Constitution, we think it appropriate to refer to few authorities which deal with the test and the criteria for determination of the status of any organization or establishment or a society as a State under Article 12 of the Constitution.

10. The Constitution Bench in *Ajay Hasia and others v. Khalid Mujib Sehravardi and others*, (1981) 1 SCC 722 referred to the decision in *Ramana Dayaram Shetty v. International Airport Authority of India*, (1979) 3 SCC 489 and thereafter summarized the relevant tests gathered from the decision of

the International Airport Authority case as follows:

"(1) One thing is clear that if the entire share capital of the corporation is held by Government it would go a long way towards indicating that the corporation is an instrumentality or agency of Government. (SCC p.507, para 14) (2) Where the financial assistance of the State is so much as to meet almost entire expenditure of the corporation, it would afford some indication of the corporation being impregnated with governmental character. (SCC p. 508, para 15) (3) It may also be a relevant factor...whether the corporation enjoys monopoly status which is State conferred or State protected. (SCC p. 508, para 15) (4) Existence of deep and pervasive State control may afford an indication that the corporation is a State agency or instrumentality. (SCC p. 508, para 15) LPA 554/2006 page 8 of 32 (5) If the functions of the corporation of public importance and closely related to governmental functions, it would be a relevant factor in classifying the corporation as an instrumentality or agency of Government. (SCC p. 509, para

16) (6) "Specifically, if a department of Government is transferred to a corporation, it would be a strong factor supportive of this inference" of the corporation being an instrumentality or agency of Government. (SCC p. 510, para 18)"

Thereafter, the Constitution Bench opined thus:

"11. We may point out that it is immaterial for this purpose whether the corporation is created by a statute or under a statute. The test is whether it is an instrumentality or agency of the government and not as to how it is created. The inquiry has to be not as to how the juristic person is born but why it has been brought into existence. The corporation may be a statutory corporation created by a statute or it may be a Government company or a company formed under the Companies Act, 1956 or it may be a society registered under the Societies Registration Act, 1860 or any other similar statute. Whatever be its genetical origin, it would be an "authority" within the meaning of Article 12 if it is an instrumentality or agency of the government and that would have to be decided on a proper assessment of the facts in the light of the relevant factors. The concept of instrumentality or agency of the government is not limited to a corporation created by a statute but is equally applicable to a company or society and in a given case it would have to be decided, on a consideration of the relevant factors, whether the company or society is an instrumentality or agency of the government so as to come within the meaning of the expression "authority" in Article 12."

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11. In *Pradeep Kumar Biswas & Ors. v. Indian Institute of Chemical Biology & Ors.*, (2002) 5 SCC 111, the question arose whether the Council of Scientific and Industrial Research (CSIR) is a State under Article 12 of the Constitution of India. The majority,

after referring to the decisions in *Ajay Hasia (supra)*, *Ramana Dayaram Shetty (supra)*, *P.K. Ramachandra Iyer and Others v. Union of India and Others*, 1984 (2) SCC 141, B.S.

Minhas v. Indian Statistical Institute & Ors., 1984 (1) SCR 395 and *Mysore Paper Mills Ltd. v. The Mysore Paper Mills Officers Association*, JT 2002 (1) 61, expressed the view as follows:

"40. The picture that ultimately emerges is that the tests formulated in *Ajay Hasia* are not a rigid set of principles so that if a body falls within any one of them it must, ex hypothesi, be considered to be a State within the meaning of Article 12. The question in each case would be - whether in the light of the cumulative facts as established, the body is financially, functionally and administratively dominated by or under the control of the Government. Such control must be particular to the body in question and must be pervasive. If this is found then the body is a State within Article 12. On the other hand, when the control is merely regulatory whether under statute or otherwise, it would not serve to make the body a State."

LPA 554/2006 page 10 of 32 After laying down the aforesaid principle, their Lordships dealt with the formation of CSIR, objects and functions, management and control, financial aid and eventually came to hold that CSIR is a State.

12. In *General Manager, Kisan Sahkari Chini Mills Ltd., Sultanpur, U.P. v. Satrugan Nishad and others*, (2003) 8 SCC 639, the Apex Court was considering whether the appellant was an "other authority" and hence a State under Article 12 of the Constitution of India. Their Lordships referred to the decisions in *Ajay Hasia (supra)*, *Pradeep Kumar Biswas (supra)*, *Chander Mohan Khanna v. NCERT*, (1991) 4 SCC 578 and came to hold as under:

"8. From the decisions referred to above, it would be clear that the form in which the body is constituted, namely, whether it is a society or a co-operative society or a company, is not decisive. The real status of the body with respect to the control of Government would have to be looked into. The various tests, as indicated above, would have to be applied and considered cumulatively. There can be no hard-and-fast formula and in different facts/situations, different factors may be found to be overwhelming and indicating that the body is an authority under Article 12 of the Constitution....."

13. In *M/s. Zee Telefilms Ltd. and another v. Union of India and others*, (2005) 4 SCC 649, the Constitution Bench was dealing with the issue whether the Board of Control for Cricket in India is a State within the LPA 554/2006 page 11 of 32 meaning of Article 12 of the Constitution of India. Their Lordships referred to Article 12 of the Constitution and traced its origin and scope in the frame of the Constitution and referred to the decisions in *Sukhdev Singh v. Bhagatram Sardar Singh Raghuvanshi*, (1975) 1 SCC 421, *Ramana Dayaram Shetty (supra)*, *Ajay Hasia (supra)* and para 40 of the decision in *Pradeep Kumar Biswas (supra)* and laid down the principle as under:

"22. Above is the ratio decidendi laid down by a seven-Judge Bench of this Court which is binding on this Bench. The facts of the case in hand will have to be tested on the touchstone of the parameters laid down in Pradeep Kumar Biswas case. Before doing so it would be worthwhile once again to recapitulate what are the guidelines laid down in Pradeep Kumar Biswas case for a body to be a State under Article 12. They are: -

(1) Principles laid down in Ajay Hasia are not a rigid set of principles so that if a body falls within any one of them it must ex hypothesi, be considered to be a State within the meaning of Article 12.

(2) The question in each case will have to be considered on the basis of facts available as to whether in the light of the cumulative facts as established, the body is financially, functionally, administratively dominated, by or under the control of the Government.

(3) Such control must be particular to the body in question and must be pervasive.

(4) Mere regulatory control whether under statute or otherwise would not serve to make a body a State."

LPA 554/2006 page 12 of 32 After laying down the principle, the majority applied the test and came to hold as follows:

"30. However, it is true that the Union of India has been exercising certain control over the activities of the Board in regard to organising cricket matches and travel of the Indian team abroad as also granting of permission to allow the foreign teams to come to India. But this control over the activities of the Board cannot be construed as an administrative control. At best this is purely regulatory in nature and the same according to this Court in Pradeep Kumar Biswas case is not a factor indicating a pervasive State control of the Board."

14. The present factual matrix has to be tested on the anvil of the aforesaid enunciation of law. The preamble which occurs in Article 1 of the Constitution of ICID reads as follows: -

"1.1. The International Commission on Irrigation and Drainage is established as a Scientific, Technical, Professional, and Voluntary Not-for-profit Non-Governmental International Organization (NGO-ONG), dedicated, inter alia, to enhance the world-wide supply of food and fibre for all people by improving water and land management, and the productivity of irrigated and drained lands through the appropriate management of water, environment and the application of irrigation, drainage and flood control techniques.

1.2. In the text of this Constitution, the International Commission on Irrigation and Drainage is referred to as the Commission or as ICID (CIID in the French version) and among international authorities, as CID (CIID)."

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15. Article 3 deals with Membership. The basis of membership is as follows: -

"3.1. ICID consists of National Committees of Participating Countries, on the basis of one National Committee for each such country. Where no National Committee exists, officers of government or of an institution or institutions effectively representing interests within the scope of the objects of the Commission may participate in ICID activities. In such cases one officer shall be designated as Representative.

3.2. Any geographical area independently administered by a sovereign government and having interest in the activities of the Commission shall be eligible to participate in the activities of the Commission. Accordingly, in exceptional cases, the Council may, having regard to the coexistence of separate sovereign geographical areas or countries, accept the representation of the sovereign parts of a country by separate National Committees. In the case of a Federal System of government, or similar set-up, only one National Committee shall be recognized for membership in ICID."

16. Article 4 deals with the composition of the national committees and its responsibility.

17. Article 5 deals with the International Executive Council. Clause 5.1 of Article 5 reads as follows: -

"5.1. The International Executive Council, hereinafter called the Council, the Executive Council or the IEC is vested with the management of the affairs of the International Commission on Irrigation and Drainage."

LPA 554/2006 page 14 of 32 The role ascribed to it is as under: -

"5.2. The Council shall consider all matters of policy which may be initiated or sponsored by any member National Committee or Office-Bearer or by the Management Board and may itself initiate and determine or otherwise advise and lay down any matter of policy. The Central Office of ICID shall act as an instrument for carrying into effect all decisions taken by the Council. The Council shall also consider what action, if any, need be taken on the recommendations or conclusions of the studies, experiments or discussions organized by the Commission. All matters affecting the executive or administrative functions and financial liabilities of ICID must come up before the Council and its decision shall be conclusive."

18. Article 6 provides for the office-bearers. Clause 6.2 deals with the election of President and Vice-Presidents. Clause 6.3.1 provides for the appointment of Secretary General. It is profitable to reproduce clause 6.3.1-

"6.3.1. Nomination: The Secretary-General shall be nominated by the President, acting as Chairperson of the Management Board, and appointed by Council."

19. Article 7 deals with Management. Clause 7.1 deals with Management Board. It is as follows: -

"7.1. The Council shall be assisted in the management of the affairs of the Commission by a Management Board composed LPA 554/2006 page 15 of 32 of the President of ICID, who shall be the Chairperson, immediate past President of ICID (one year only), Chairpersons of the Permanent Technical Activities Committee, Permanent Finance Committee and Permanent Committee on Strategy Planning and Organizational Affairs and the Secretary-General."

Clause 7.2 of Article 7 provides that the Central Officer shall be located in New Delhi, India and shall be maintained under the general provision of the Council and under the immediate direction of the President. Clause 7.3.1 deals with financial management.

20. Article 10 provides for dues, subscriptions and funds. It is apposite to reproduce clauses 10.1, 10.2 and 10.3, which read as follows: -

"Annual Subscriptions 10.1 In order to defray the cost of the activities of the Commission or for special purposes, the National Committees or representative organizations of participating countries shall regularly pay to the order of the Secretary-General annual subscriptions (in as near the beginning of each calendar year as may be possible) on the basis pre-determined by the Council and taking into consideration, inter alia, the interest and the capacity to pay of the participating country. National Committees or representative organizations of participating countries shall also pay such other special subscriptions as may be determined by the Council.

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Registration Fees

10.2 For each Congress, regional conference, technical session, international workshop or such other international activity, the Council may, in consultation with the National Committee of the host country, fix individual registration fees, or fees for participating organizations. In addition, the portion of the proceeds that should accrue to the budget of the Central Office of the Commission from such events shall also be determined by the Council.

Funds 10.3 The Central Office shall be authorized to receive and to handle as funds of the Commission, any subscription, subvention or gift that may be made in the general

interests of the objects of the Commission, or for specific research, special investigation or experimental work; and it may arrange, under general authority given by the Council, cooperative research, investigations or experimental work with other international organizations, properly qualified institutions, governmental or private, or with technical societies or associations."

21. Article 12 deals with dissolution and liquidation. Clause 12.1 deals with dissolution which reads as follows: -

"12.1. ICID may be declared dissolved only by a decision to be reached at a regular or a special meeting of the Council and provided that at least two-thirds of the total number of participating countries, whether represented at such a meeting of the Council or not, vote for dissolution."

Clause 12.2 deals with liquidation and its procedure.

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22. There is a set of by-laws which have been frame by the ICID for due implementation of the provisions of the ICID. It provides for election of office bearers, working bodies of the ICID, permanent committees, role and membership, temporary working bodies, International Executive Council and various other aspects.

23. On a comprehensive survey of the Constitution of ICID and the by- laws, we do not perceive that there is either any control of the government either financially, functionally or administratively or it is dominated by any action of the government. We do not even remotely see that there is any kind of pervasive control. Some officers may be coming on deputation regard being had to the character of the ICID or there may be initially a grant of Rs.15,000/- in 1950 or some aid at times but that does not clothe it with the character and status of other authority as understood under Article 12 of the Constitution of India. Hence, we conclude and hold that ICID is not an instrumentality of state or other authority under Article 12 of the Constitution of India.

24. The next ancillary or subsidiary issue which is fundamentally a part of the seminal issue is whether the ICID performs such public activities as LPA 554/2006 page 18 of 32 a consequence of which it becomes amenable to writ jurisdiction under Article 226 of the Constitution.

25. In this context, we may refer to certain authorities which have been cited by the learned counsel for the appellant to highlight that when public duty is performed by a society or an organization, a writ petition would be maintainable under Article 226 of the Constitution.

26. In the case of Shri Anadi Mukta Sadguru Shree Muktajee Vandasjiswami Suvarna Jayanti Mahotsav Smarak Trust and others v. V.R. Rudani and others, AIR 1989 SC 1607, a two-judge bench of the Apex Court was dealing with an issue pertaining to command of mandamus to any other

person or authority performing public duty. In the said case, the appellant-trust was running a science college at Ahmedabad and when a dispute arose between the trust and the teachers, the matter was referred to the Chancellor of the Gujarat University for decision and the Chancellor passed an Award. The Award passed by the Chancellor was accepted by the University as well as by the State Government and direction was issued to all affiliated colleges to pay their teachers in terms of the award. The trust, instead of implementing the award, served notices of LPA 554/2006 page 19 of 32 termination and approached the University for permission to remove them but the same was refused by the Vice-Chancellor. The trust thereafter took a decision to close down the college to the detriment of the teachers and students. The teachers submitted their representations that they were entitled to terminal benefits. When no response was received, they moved the High Court for issue of a writ of mandamus commanding the trust to pay them their dues, salary, allowances, provident fund and gratuity in accordance with the rules framed by the University and pay them compensation. The trust resisted the writ petition contending, inter alia, that the trust was not a statutory body and is not subject to the writ jurisdiction. The High Court repelled the said stand and issued direction which was challenged before the Apex Court. Regard being had to the role performed by the trust, their Lordships opined thus -

"14. If the rights are purely of a private character no mandamus can issue. If the management of the college is purely a private body with no public duty mandamus will not lie. These are two exceptions to Mandamus. But once these are absent and when the party has no other equally convenient remedy, mandamus cannot be denied. It has to be appreciated that the appellants-trust was managing the affiliated college to which public money is paid as Government aid. Public money paid as Government aid plays a major role in the control, maintenance and working of educational institutions. The aided institutions like Government institutions discharge LPA 554/2006 page 20 of 32 public function by way of imparting education to students. They are subject to the rules and regulations of the affiliating University. Their activities are closely supervised by the University authorities. Employment in such institutions, therefore, is not devoid of any public character. (See-The Evolving Indian Administrative Law by M.P. Jain (1983) p.

266). So are the service conditions of the academic staff. When the University takes a decision regarding their pay scales, it will be binding on the management. The service conditions of the academic staff are, therefore, not purely of a private character. It has super-added protection by University decisions creating a legal right-duty relationship between the staff and the management. When there is existence of this relationship, mandamus cannot be refused to the aggrieved party.

19. The term "authority" used in Article 226, in the context, must receive a liberal meaning unlike the term in Article 12. Article 12 is relevant only for the purpose of enforcement of fundamental rights under Art. 32. Article 226 confers power on the High Courts to issue writs for enforcement of the fundamental rights as well as non-fundamental rights. The words "Any person or authority" used in Article 226 are, therefore, not to be confined only to statutory authorities and instrumentalities

of the State. They may cover any other person or body performing public duty. The form of the body concerned is not very much relevant. What is relevant is the nature of the duty imposed on the body. The duty must be judged in the light of positive obligation owed by the person or authority to the affected party. No matter by what means the duty is imposed. If a positive obligation exists mandamus cannot be denied."

27. In *K. Krishnamacharyulu and others v. Sri Venkateswara Hindu College of Engineering and another*, (1997) 3 SCC 571, a two-Judge Bench LPA 554/2006 page 21 of 32 of the Apex Court was dealing with parity of employment to the Lab Assistant as non-teaching staff in private college with the government employees. An objection was raised with regard to the maintainability of the writ petition which was sustained by the High Court. It was the gravamen of contention that at the relevant time, the institution was not receiving any grant-in-aid. Their Lordships, while dealing with the issue, opined as follows: -

".....In view of the long line of decisions of this Court holding that when there is an interest created by the Government in an Institution to impart education, which is a fundamental right of the citizens, the teachers who impart the education get an element of public interest in the performance of their duties. As a consequence, the element of public interest requires regulation of the conditions of service of those employees on a par with government employees. In consequence, are they also not entitled to the parity of the pay scales as per the executive instructions of the Government? It is not also in dispute that all the persons who filed the writ petition along with the appellant had later withdrawn from the writ petition and thereafter the respondent-Management paid the salaries on a par with the government employees. Since the appellants are insisting upon enforcement of their right through the judicial pressure, they need and seek the protection of law.

We are of the view that the State has obligation to provide facilities and opportunities to the people to avail of the right to education. The private institutions cater to the need of providing educational opportunities. The teacher duly appointed to a post in the private institution also is entitled to seek enforcement of the orders issued by the Government. The question is as to which forum one should approach. The High LPA 554/2006 page 22 of 32 Court has held that the remedy is available under the Industrial Disputes Act. When an element of public interest is created and the institution is catering to that element, the teacher, being the arm of the institution, is also entitled to avail of the remedy provided under Article 226; the jurisdiction part is very wide." [Emphasis supplied]

28. In *G. Bassi Reddy v. International Crops Research Institute and another*, AIR 2003 SC 1764, the Apex Court has opined thus -

"28. A writ under Art. 226 can lie against a "person" if it is a statutory body or performs a public function or discharges a public or statutory duty *Praga Tools Corporation v. C.V. Imanuel*, (1969) 1 SCC 585; *Andi Mukta Sadguru Trust v. V.R. Rudani*, (1989) 2 SCC 691, 698; *VST Ind. Ltd. v. VST Ind.*

Workers' Union and Another (2001) 1 SCC 298. ICRISAT has not been set up by a statute nor are its activities statutorily controlled. Although, it is not easy to define what a public function or public duty is, it can reasonably be said that such functions are similar to or closely related to those performable by the State in its sovereign capacity. The primary activity of ICRISAT is to conduct research and training programmes in the sphere of agriculture purely on a voluntary basis. A service voluntarily undertaken cannot be said to be a public duty. Besides ICRISAT has a role which extends beyond the territorial boundaries of India and its activities are designed to benefit people from all over the world. While the Indian public may be the beneficiary of the activities of the institute, it certainly cannot be said that the ICRISAT owes a duty to the Indian public to provide research and training facilities. In *Praga Tools Corporation v. C.V. Imanuel*, AIR 1960 SC 1306, this Court construed Art. 226 to hold that the High Court could issue a writ of mandamus "to secure the performance of the duty or statutory duty" in the performance of which the LPA 554/2006 page 23 of 32 one who applies for it has a sufficient legal interest". The Court also held that:

".....an application for mandamus will not lie for an order of reinstatement to an office which is essentially of a private character nor can such an application be maintained to secure performance of obligations owed by a company towards its workmen or to resolve any private dispute. (See *Sohan Lal v. Union of India*, 1957 SCR 738)."

[Emphasis supplied]

29. In *M/s. Zee Telefilms Ltd. (supra)*, their Lordships, after holding that BCCI is not a state under Article 12 of the Constitution, stated thus -

"31. Be that as it may, it cannot be denied that the Board does discharge some duties like the selection of an Indian cricket team, controlling the activities of the players and others involved in the game of cricket. These activities can be said to be akin to public duties or State functions and if there is any violation of any constitutional or statutory obligation or rights of other citizens, the aggrieved party may not have a relief by way of a petition under Article 32. But that does not mean that the violator of such right would go scot-free merely because it or he is not a State. Under the Indian jurisprudence there is always a just remedy for violation of a right of a citizen. Though the remedy under Article 32 is not available, an aggrieved party can always seek a remedy under the ordinary course of law or by way of a writ petition under Article 226 of the Constitution, which is much wider than Article 32."

30. In *Federal Bank Ltd. v. Sagar Thomas and others*, (2003) 10 SCC 733 wherein the issue arose whether the bank, namely, Federal Bank Ltd., was LPA 554/2006 page 24 of 32 amenable to writ jurisdiction of the High Court as it performs public duty, their Lordships referred to the earlier decision in the field and opined thus-

"18. From the decisions referred to above, the position that emerges is that a writ petition under Article 226 of the Constitution of India may be maintainable against

(i) the State (Government); (ii) an authority; (iii) a statutory body; (iv) an instrumentality or agency of the State; (v) a company which is financed and owned by the State; (vi) a private body run substantially on State funding; (vii) a private body discharging public duty or positive obligation of public nature; and (viii) a person or a body under liability to discharge any function under any statute, to compel it to perform such a statutory function."

Thereafter, their Lordships referred to the decision in *Shri Anadi Mukta Sadguru Shree Kuktajee Vandasjswami Suvarna Jayanti Mahotsav Smarak Trust* (supra) and other line of decisions with regard to the maintainability of writ petition in respect of a private body which performs public duty and duties of public character and expressed the view as follows: -

"..... a private company carrying on banking business as a scheduled bank, cannot be termed as an institution or a company carrying on any statutory or public duty. A private body or a person may be amenable to writ jurisdiction only LPA 554/2006 page 25 of 32 where it may become necessary to compel such body or association to enforce any statutory obligations or such obligations of public nature casting positive obligation upon it. We don't find such conditions are fulfilled in respect of a private company carrying on a commercial activity of banking. Merely regulatory provisions to ensure such activity carried on by private bodies work within a discipline, do not confer any such status upon the company nor put any such obligation upon it which may be enforced through issue of a writ under Article 226 of the Constitution."

31. In *Binny Ltd. and another v. V. Sadasivan and others*, AIR 2005 SC 3202, the issue arose whether the employees of Binny Ltd. could have been granted a relief under the writ petition by the High Court by issuing a writ of mandamus. Their Lordships addressed to the issue of grant of relief under Article 226 of the Constitution and in that context opined thus -

"29. Thus, it can be seen that a writ of mandamus or the remedy under Article 226 is pre-eminently a public law remedy and is not generally available as a remedy against private wrongs. It is used for enforcement of various rights of the public or to compel the public/statutory authorities to discharge their duties and to act within their bounds. It may be used to do justice when there is wrongful exercise of power or a refusal to perform duties. This writ is admirably equipped to serve as a judicial control over administrative actions. This writ could also be issued against any private body or person, specially in view of the words used in Article 226 of the Constitution. However, the scope of mandamus is limited to enforcement of public duty. The scope of mandamus is determined by the nature of the duty to be LPA 554/2006 page 26 of 32 enforced, rather than the identity of the authority against whom it is sought. If the private body is discharging a public function and the denial of any right is in connection with the public duty imposed on such body, the public law remedy can be enforced. The duty cast on the public body may be either statutory or otherwise and

the source of such power is immaterial, but, nevertheless, there must be the public law element in such action. Sometimes, it is difficult to distinguish between public law and private law remedies. According to Halsbury's Laws of England 3rd ed. Vol. 30, page-682, "a public authority is a body not necessarily a county council, municipal corporation or other local authority which has public statutory duties to perform and which perform the duties and carries out its transactions for the benefit of the public and not for private profit." There cannot be any general definition of public authority or public action. The facts of each case decide the point."

[Emphasis supplied]

32. Applying the aforesaid enunciation of law, it is to be seen whether the respondent-ICID functions public duty to make itself amenable to the writ jurisdiction of this Court. In this context, we may refer with profit to clause 2.1, which deals with mission of the ICID and clause 2.2, which deals with scope of the ICID. The said clauses read as follows: -

"Mission 2.1. The Mission of the International Commission on Irrigation and Drainage is to stimulate and promote the development of the arts, sciences and techniques of LPA 554/2006 page 27 of 32 engineering, agriculture, economics, ecology and social science in managing water and land resources for irrigation, drainage, flood control and river training applications, including research and development and capacity building, adopting comprehensive approaches and up-to-date techniques for sustainable agriculture in the world.

Scope 2.2. The Commission in achieving its mission may consider the following objectives:

(a) Planning, financing, socio-economic and environmental aspects of irrigation, drainage, flood control and undertakings for the reclamation and improvement of lands as well as the design, construction and operation of appurtenant engineering works including dams, reservoirs, canals, drains and other related infrastructure for storage, conveyance, distribution, collection and disposal of water.

(b) Planning, financing, socio-economic and environmental aspects of schemes for river training and behaviour, flood control and protection against sea water intrusion of agricultural lands as well as the design, construction and operation of appurtenant works, except such matters as relate to the design and construction of large dams, navigation works and basic hydrology;

(c) Research and development, training and capacity building in areas related to basic and applied science, technology, management, design, operation and maintenance of irrigation, drainage, flood control, river training improvement and land reclamation.

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(d) Facilitation of international inputs required by the developing countries, particularly the low income countries lagging in the development of irrigation and drainage;

(e) Promotion of the development and systematic management of sustained irrigation and drainage systems;

(f) Pooling of international knowledge on the topics related to irrigation, drainage and flood control and making it available worldwide;

(g) Addressing of international problems and challenges posed by irrigation, drainage and flood control works and promoting evolution of suitable remedial measures;

(h) Promoting savings in use of water for agriculture;

(i) Promoting equity including gender equity between users and beneficiaries of irrigation, drainage and flood control systems;

(j) Promotion of preservation and improvement of soil and water quality of irrigated lands."

33. On a perusal of the preamble and the objects, it is clear as crystal that the respondent has been established as a Scientific, Technical, Professional and Voluntary Non-Governmental International Organization, dedicated to enhance the world-wide supply of food and fibre for all people by improving water and land management and the LPA 554/2006 page 29 of 32 productivity of irrigated and drained lands so that the appropriate management of water, environment and the application of irrigation, drainage and flood control techniques. It is required to consider certain kind of objects which are basically a facilitation process. It cannot be said that the functions that are carried out by ICID are anyway similar to or closely related to those performable by the State in its sovereign capacity.

It is fundamentally in the realm of collection of data, research, holding of seminars and organizing studies, promotion of the development and systematic management of sustained irrigation and drainage systems, publication of newsletter, pamphlets and bulletins and its role extends beyond the territorial boundaries of India. The memberships extend to participating countries and sometimes, as by-law would reveal, ICID encourages the participation of interested national and non-member countries on certain conditions.

34. As has been held in the case of Federal Bank Ltd. (supra), solely because a private company carries on banking business, it cannot be said that it would be amenable to the writ jurisdiction. The Apex Court has opined that the provisions of Banking Regulation Act and other statutes have the

regulatory measure to play. The activities undertaken by the LPA 554/2006 page 30 of 32 respondent-society, a non-governmental organization, do not actually partake the nature of public duty or state actions. There is absence of public element as has been stated in V.R. Rudani and others (supra) and Sri Venkateswara Hindu College of Engineering and another (supra). It also does not discharge duties having a positive application of public nature. It carries on voluntary activities which many a non-governmental organizations perform. The said activities cannot be stated to be remotely connected with the activities of the State. On a scrutiny of the constitution and by-laws, it is difficult to hold that the respondent-society has obligation to discharge certain activities which are statutory or of public character. The concept of public duty cannot be construed in a vacuum. A private society, in certain cases, may be amenable to the writ jurisdiction if the writ court is satisfied that it is necessary to compel such society or association to enforce any statutory obligation or such obligations of public nature casting positive public obligation upon it.

35. As we perceive, the only object of the ICID is for promoting the development and application of certain aspects, which have been voluntarily undertaken but the said activities cannot be said that ICID LPA 554/2006 page 31 of 32 carries on public duties to make itself amenable to the writ jurisdiction under Article 226 of the Constitution.

36. In view of the aforesaid premised reasons, we do not perceive any merit in this appeal and, accordingly, the same stands dismissed without any order as to costs.

CHIEF JUSTICE

APRIL 25, 2011
Dk/nm/kapil

SANJIV KHANNA, J.

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